

Lease Abstract

Lease : Oracle Flooring Direct LLC (t0000479)

Lease Information

Name	Oracle Flooring Direct LLC	Status	Future
DBA	Oracle Flooring Direct	ICS Code	-
Property	comm001	Lease Type	Retail Net
Location	3250 Quentin St & 3251 Revere St, Aurora, CO	Sales Category	General
Customer	-	Contract Area	5,204.00 (Rentable)
		Area	0.00 (Rentable)
	Primary Contact	Monthly Rent	
Name	Oracle Flooring Direct LLC	Annual Rent	0.00
Office Phone		Rent Per Area	0.00
FAX		Deposit	0.00
E-Mail		Lease Term	2/1/2025 To 3/31/2029

Charge Schedules

Charge Code	Charge Desc	Date From	Date To	Monthly Amt	Annual Amt	Amt Per Area	Mgmt fees	Amendment Type	Units
abated	Abated Rent	2/1/2025	3/31/2025	-3,469.33	-41,631.96	(.67)/ Mo	0.00	Original Lease	132
camest	CAM Estimate	2/1/2025	3/31/2029	2,393.84	28,726.08	.46/ Mo	0.00	Original Lease	132
rent	Base Rent	2/1/2025	1/31/2026	3,469.33	41,631.96	.67/ Mo	0.00	Original Lease	132
		2/1/2026	1/31/2027	4,712.87	56,554.44	.91/ Mo	0.00	Original Lease	132
		2/1/2027	1/31/2028	4,877.82	58,533.84	.94/ Mo	0.00	Original Lease	132
		2/1/2028	1/31/2029	5,048.55	60,582.60	.97/ Mo	0.00	Original Lease	132
		2/1/2029	3/31/2029	5,225.25	62,703.00	1.00/ Mo	0.00	Original Lease	132

Indexation

Charge Code	Charge Desc	Date From	Date To	Indexation Method	Index	Month	Factor	Min	Max	Amendment Type	Units
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Amendments

Type	Description	Status	Term (Months)	Date From	Date To	Units
Original Lease	Original Lease	In Process	50.00	2/1/2025	3/31/2029	132

Late Fee

Calculation Type	Grace Period	Percent	2nd Fee Calculation Type	2nd Fee Grace Period	2nd Fee Percent	Per Day Fee
% Owed-Total	0	10.00				0.00

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
assign	Assignment & Sublease	L, Pg. 10-12, Sec. 16 - W/out Consent: TT shall not, w/out the prior written consent of LL, assign or hypothecate this lease or any interest herein or sublet the Premises or any part thereof (each a "Transfer"), or permit the use of the Premises by any party other than TT, except to a Permitted Transferee pursuant to a Permitted Transfer. Excess rent: Any sums or other economic consideration received by TT as a result of such assignment or subletting, denominated under the assignment or sublease, which exceed, in the aggregate, (i) the total sums which TT is obligated to pay LL under this Lease (prorated to reflect obligations allocable to any portion of the Premises subleased), plus (ii) any real estate brokerage commission or fees payable in connection w/ such assignment or subletting, shall be paid to LL as Additional Rent under this Lease w/out affecting or reducing any other obligations of TT hereunder. Liability: No subletting or assignment shall release TT of TT's obligations under this Lease or alter the primary liability of TT to pay the Rent and to fulfil all other obligations to be performed by TT hereunder. Change of control: If TT is a partnership or limited liability company: A. A change in ownership effected voluntarily, involuntarily, or by operation of law, of 25% or more of the partners or members or 25% or more of the partnership or membership interests; or B. The dissolution of the partnership or limited liability company; (ii) If TT is a closely held corporation (i.e., one whose stock is not publicly held and not traded through an exchange or over the counter): A. The sale or transfer of more than an aggregate 25% of the voting shares of TT; B. The sale, mortgage, hypothecation or pledge of more than an aggregate of 25% of the value of TT's unencumbered assets C. The dissolution, merger consolidation or other reorganization of TT. Processing Fees: If TT assigns the Lease or sublets the Premises or requests the consent of LL to any assignment or subletting or if TT requests the consent of LL for any act that TT proposes to do, then TT shall, upon demand, pay LL an Admin fee of \$500.00 plus any attorneys' fees reasonably incurred by LL in connection w/ such act or request. In the event of a default under the Master Lease [i.e., this Lease] which results in the termination of the Master Lease, or if LL under the Master Lease shall exercise any right to cancel or terminate the Master Lease, the Subtenant hereunder shall, at the option of the LL under the Master Lease, attorn to and recognize such LL as Subtenant's SubLL upon the terms and conditions of the Sublease and shall, promptly upon LL's request, execute and deliver all instruments necessary or appropriate to confirm such attornment and recognition. Refer Sec. 16 for more details.	Original Lease
rent	Rent	L, BLI, Pg. 1-2, Sec. Base Rent; Pg. 3, 4, Sec. 2(g, i), 5(a) Payment: Schedule Rent shall be payable in advance on the first day of each calendar month of the Term. Scheduled Rent: The Base Rent, together with TT's Proportionate Share of the Increased Project Operating Costs and Taxes. Proration: If the Term begins (or ends) On other than the first (or last) day of a calendar month, the Scheduled Rent for the partial month shall be prorated on a per diem basis using 30 day month proration. Prepaid Rent: TT shall pay LL one month's Base Rent and TT's PRS of Project Operating Costs and Taxes to be applied against the 1st month's Rent, together w/ the Security Deposit, when TT executes the Lease.	Original Lease
cotenanc	Co-Tenancy	Lease is silent.	Original Lease

Other Lease Provisions / Clauses			
Id	Name	Description	Amendment Type
default	Default	L, Pg. 15-17, Sec. 27 - Monetary Default: If TT fails to pay any Rent or any other charges required to be paid by TT under the lease and such failure continues for 5 days after such payment is due and payable. Non-monetary Default: If TT fails to promptly and fully perform any other covenant, condition or agreement contained in the Lease and such failure continues for 30 days after written notice thereof from LL to TT. Refer Sec. 27 for more TT's default and LL's remedies.	Original Lease
estoppel	Estoppel	L, Pg. 15, Sec. 25 - W/in 10 days after written request from LL, TT shall execute and deliver to LL or LL's designee, a written statement certifying as set forth in Sec. 25 of the Lease. Failure: TT's failure to execute and deliver such statement w/in the time required shall at LL's election be a default under the Lease and shall also be conclusive upon TT that: (1) the Lease is in full force and effect and has not been modified except as represented by LL; (2) there are no uncured defaults in LL's performance and that TT has no right of offset, counter-claim or deduction against Rent; and (3) not more than one month's Rent has been paid in advance.	Original Lease
conuse	Continuous Use or Go Dark	Lease is silent.	Original Lease
guaranty	Guaranty	L, Exh H, Pg. 38-41 - Guarantor hereby unconditionally guarantees to LL the full, faithful and complete performance by TT of each and every obligation, term, condition and provision to be performed by TT under the Lease. The obligation of the Guarantor hereunder is joint and several w/ TT. LL may proceed to enforce this obligation of Guarantor against Guarantor and TT, or either of them, w/out first proceeding against the other. The right of LL to enforce the obligations of Guarantor shall not be postponed, delayed or otherwise prejudiced by the commencement of proceedings (whether voluntary or involuntary) to have the TT named as a debtor under Federal Bankruptcy Code, or under any similar state or federal law. Refer Exh H for more details.	Original Lease
pro rata	Pro Rata Definition	L, BLI, Pg. 2, Sec. TT's Proportionate Share – TT's PRS: 3.60%. Numerator: The rentable area of the Premises (5,204 sf). Denom: The rentable area in the Project (144,464 sf).	Original Lease
holdover	Holdover	L, Pg. 12, Sec. 17 - Holdover Rent: TT shall pay for each month or any part thereof of any such hold-over period 150% of the Monthly installments of Base Rent in effect at the end of the Lease Term (plus any Additional Rent as provided herein) in effect upon the date of such expiration or earlier termination, and otherwise upon the terms, covenants and conditions herein specified, so far as applicable.	Original Lease
late fee	Late Fee	L, Pg. 6, Sec. 6 - Interest: If TT fails to pay when due any Rent or other amounts or charges which TT is obligated to pay under the terms of the Lease, the unpaid amounts shall bear interest at the maximum rate then allowed by law. Late Charges: TT acknowledges that the late payment of any Rent will cause LL to lose the use of that money and incur costs and expenses not contemplated under the Lease, including Admin and collection costs and processing and accounting expenses, the exact amount of which is extremely difficult to ascertain. Therefore, in addition to interest, if any such installment is not received by LL when due, TT shall pay LL a late charge equal to the greater of (i) 10% of the installment not timely paid or (ii) \$500. LL and TT agree that this late charge represents a reasonable estimate of such costs and expenses and is fair compensation to LL for the loss suffered from such nonpayment by TT.	Original Lease
opex/cam	OpEx/CAM	L, BLI, Pg. 3, Sec. Estimated first year operating Cost - Estimated first year operating Cost: \$2,393.84 /month (\$0.46 per SF /month). L, Pg. 3, Sec. 2(i) - Scheduled Rent: The Base Rent, together with TT's Proportionate Share of the	Original Lease

Increased Project Operating Costs and Taxes.

L, BLI, Pg. 2, Sec. TT's PRS; Pg. 3, 4-6, Sec. 2(a, e-f, i), 5(a-e, g, h) - Payment: Scheduled Rent shall be payable in advance on the first day of each calendar month of the Term.

Prior to January 1 of each CY during the lease Term, or as soon as practical thereafter, LL shall make a good faith estimate of the Project Operating Costs for the applicable full or partial CY and TT's PRS thereof. For each month during such CY, TT to pay LL one-twelfth of TT's PRS of Project Operating Costs.

If LL does not provide TT w/ such estimate by January 1 of any CY, TT shall continue to pay TT's PRS of Project Operating Costs based on the previous year's estimate until LL provides such estimate, at which time an adjustment shall be made for any month during which TT made payments based on the previous year's estimate. LL shall have the right to reasonably revise such estimate no more than once during any CY, and thereafter the amount TT shall pay each month shall be based upon such revised estimate.

Inclusion: All direct and indirect costs, expenses paid and disbursements of every kind, which LL incurs, pays or becomes obligated to pay in each CY in connection w/ operating, maintaining, repairing, preserving, owning and managing the Project and its supporting facilities serving the Project. Project Operating Costs shall be calculated in accordance w/ generally accepted accounting principles ("GAAP") and in a consistent manner from year to year. Project Operating Costs shall include, (i) wages, salaries and related expenses and benefits ("Personnel Costs") of all on-site and off-site employees and personnel engaged in the operation, maintenance, repair and security of the Project, to the extent such charges are directly allocable to services rendered by the employees and personnel for the benefit of the Project; (ii) costs of LL's office (including the property MGMT office) the extent providing for the MGMT of the Project and office operation in the Project, as well as the costs of operation of a room for delivery and distribution of mail to tenants of the Project; (iii) all supplies, materials, equipment and equipment rental used in the operation, maintenance, repair and preservation of the Project, and all UTL, including water, sewer and power, telephone, communication and cable television facilities, lighting, and other UTL or services provided to the Common Area; (iv) a commercially reasonable MGMT fee; (v) all INS costs, including, the cost of property and liability coverage and rental income and earthquake INS applicable to the Project and LL's personal property used in connection therewith, as well as deductible amounts applicable to such INS; provided, that LL may, carry earthquake INS. Refer Sec. 5(d) for more details.

Exclusion: Project Operating Costs shall not include the following: (i) costs of alterations of tenant spaces (including all tenant improvements to such spaces); (ii) costs of capital improvements, except as provided in Section 5.d. above; (iii) interest and principal payments on mortgages, and other debt costs, if any; (iv) real estate brokers' leasing commissions or compensation and advertising and other marketing expenses; (v) costs or other services or work performed for the singular benefit of another tenant or occupant (other than for Common Areas); (vi) advertising, space planning, construction, legal and other expenses incurred in procuring tenants for the Bldg or renewing or amending leases w/ exiting tenants or occupants of the Bldg; (vii) any expense for which LL actually receives reimbursement from INS, condemnation awards, other tenants, (other than through the payment of Additional Rent under such tenants' leases); (viii) costs incurred in connection w/ the sale, financing, refinancing, mortgaging, or other change of ownership of the Bldg; and (ix) Taxes. Refer Sec. 5(e) for more exclusions.

Statement: As soon as is practical following the end of each CY during the Lease Term, LL shall furnish to TT a statement of LL's actual Project Operating Costs for the previous CY.

Reconciliation: In the event that LL has been assessed for, but because of a dispute has not paid a Project Operating Cost or Costs at the time of delivery of such Reconciliation Statement, LL may nonetheless include the full disputed amount as Project Operating Cost but shall note the dispute in the Reconciliation Statement. LL shall promptly refund to TT any overpayment (or at LL's option, provided the Lease has not yet expired, credit such amount against Rent due or to become due hereunder), or TT shall pay to LL, w/in 10 days of demand, any underpayment, of estimated Project Operating Costs. TT's obligations to pay TT's PRS of the Project Operating Costs, LL's obligation to refund any amount due to TT as an overpayment, shall survive the expiration of the Lease Term.

Audit: During the 30 day period following the delivery of LL's statement of the actual amount of Project Operating Costs for a Lease Year, (i) TT shall have the right to inspect, at reasonable times

and in a reasonable manner at LL's offices, such of LL's books of account and records as pertain to and contain information concerning such costs and expenses in order to verify the amounts thereof, and (ii) to dispute any item or items of Project Operating Costs for such Lease Year by delivering a written notice to LL describing in reasonable detail the basis of such dispute, but if TT does not so deliver such written notice of dispute, TT shall be deemed to have approved such statement. Refer Sec. 5(g) for more details.

parking	Parking	L, Pg. 3, Sec. 2(b) - Those portions of the Project that are available for the common use of Tenants of the Project, including driveways, parking areas.	Original Lease
		L, Exh E, Pg. 30, Sec. 4 - Parking any type of recreational vehicles is specifically prohibited. No vehicle of any type shall be stored in the parking areas at any time. In the event that a vehicle is disabled, it shall be removed w/in 48 hours. There shall be no "For Sale" or other advertising signs on or about any parked vehicle. All vehicles shall be parked only in striped parking spaces in the designated parking areas in conformance w/ all posted signs and other markings. LL assumes no responsibility to police the use of the parking areas. TT shall not cause or permit large trucks to be parked w/in the Project except in designated areas and only while making deliveries to the Premises. TT shall not perform any maintenance and repairs on its vehicles in any of the Project parking areas.	
insreimb	Insurance Reimbursement	L, Pg. 4-5, Sec. 5(d) - Cost of all INS costs, including, the cost of property and liability coverage and rental income and earthquake INS applicable to the Project and LL's personal property used in connection therewith, as well as deductible amounts applicable to such INS; provided, that LL may, carry earthquake INS to be included in Project Operating Costs.	Original Lease
radius	Radius Restriction	Lease is silent.	Original Lease
brokers	Brokers	L, BLI, Pg. 3, Sec. Brokers - LL's Broker: Michael Harpole and Daniel Close of CBRE Inc. ("CBRE") TT's Broker: N/A. L, Pg. 19-20, Sec. 28 - TT warrants and represents that it has not dealt w/ any real estate broker or agent in connection w/ the Lease or its negotiation except those noted in BLI. TT shall indemnify and hold LL harmless from any cost, expense or liability (including costs of suit and reasonable attorneys' fees) for any compensation, commission or fees claimed by any other real estate broker or agent in connection w/ this lease or its negotiation by reason of any act of TT.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
taxes	Real Estate Taxes	L, BLI, Pg. 3, Sec. 2(a, e, g, i, k); Pg. 4-6, Sec. 5(a-c, f, g-h) - Payment: Scheduled Rent shall be payable in advance on the first day of each calendar month of the Term. Prior to January 1 of each CY during the lease Term, or as soon as practical thereafter, LL shall make a good faith estimate of the Taxes for the applicable full or partial CY and TT's PRS thereof. For each month during such CY, TT to pay LL one-twelfth of TT's PRS of Taxes. If LL does not provide TT w/ such estimate by January 1 of any CY, TT shall continue to pay TT's PRS of Taxes based on the previous year's estimate until LL provides such estimate, at which time an adjustment shall be made for any month during which TT made payments based on the previous year's estimate. LL shall have the right to reasonably revise such estimate no more than once during any CY, and thereafter the amount TT shall pay each month shall be based upon such revised estimate. Scheduled Rent: The Base Rent, together with TT's Proportionate Share of the Increased Project Operating Costs and Taxes. Inclusion: All taxes, assessment and charges of any kind, levied against the Project which LL is alleged to owe or shall pay or become obligated to pay in connection w/ the ownership, leasing, renting, MGMT use, occupancy, control or operation of the Project or of the person property, fixtures, machinery, equipment, systems and apparatus used in connection therewith. Taxes includes (i) all real estate taxes and assessments on the Project, including sewer rents, water rents, special or general assessments, transit taxes, ad valorem taxes, and taxes and assessments levied in substitution or supplementation in whole or in part of such taxes, (ii) all personal property taxes for the Project's personal property, including license expenses, (iii) all taxes imposed on services of LL's agents and employees, (iv) any gross receipts tax, sales, use or other tax, excluding state and/or federal income tax, now or hereafter imposed by any governmental authority upon rent received by LL. Refer Sec. 5(f) for more details. Statement: As soon as is practical following the end of each CY during the Lease Term, LL shall furnish to TT a statement of LL's actual Taxes for the previous CY. Reconciliation: In the event that LL has been assessed for, but because of a dispute has not paid a Taxes at the time of delivery of such Reconciliation Statement, LL may nonetheless include the full disputed amount as Tax but shall note the dispute in the Reconciliation Statement. LL shall promptly refund to TT any overpayment (or at LL's option, provided the Lease has not yet expired, credit such amount against Rent due or to become due hereunder), or TT shall pay to LL, w/in 10 days of demand, any underpayment, of estimated Taxes. W/out limitation on other obligations of TT or LL that survive the expiration of the Lease Term, TT's obligations to pay TT's PRS of the Taxes, LL's obligation to refund any amount due to TT as an overpayment, shall survive the expiration of the Lease Term.	Original Lease
signage	Signage	L, Pg. 20, Sec. 35 - TT shall not affix, paint, erect or inscribe any sign, projection, awning, signal or advertisement of any kind to any part of the Premises, Bldg or Project, including, the inside or outside of windows or doors, w/out the written consent of LL. LL shall have the right to remove any signs or other matter, installed w/out LL's permission, w/out being liable to TT by reason of such removal, and to charge the cost of removal to TT as Additional Rent hereunder, payable w/in 10 days of written demand by LL.	Original Lease
kickout	Sales Kickout	Lease is silent.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
alter	Alterations	L, Pg. 9-10, Sec. 12 - W/ Consent: TT shall not make any additions, alterations or improvements to the Premises w/out obtaining the prior written consent of LL. LL's consent may be conditioned on TT's removing any such additions, alterations or improvements upon the expiration of the Term and restoring the Premises to the same condition as on the date TT took possession. Plans and Specification: All work w/ respect to any addition, alteration or improvement shall be done in a good and workmanlike manner by properly qualified and licensed personnel approved by LL, and such work shall be diligently prosecuted to completion. LL may, at LL's option, require that any such work be performed by LL's contractor, in which case the cost of such work shall be paid for before commencement of the work. TT shall pay to LL upon completion of any such work by LL's contractor an Admin fee of 15% of the cost of the work. TT shall pay the costs of any work done on the Premises pursuant to Section 12.a., and shall keep the Premises, Bldg and Project, and TT's leasehold interest, and any additions or improvements which are or become the property of LL under this Lease, free and clear of all liens of any kind. LL may require, at LL's sole option, that TT provide to LL, at TT's expense, a lien and completion bond in an amount equal to at least 1½ times the total estimated cost of any additions, alterations or improvements to be made in or to the Premises, to protect LL against any liability for mechanic's and materialmen's liens and to insure timely completion of the work. Removal: Unless their removal is required by LL as provided in Section 12.a., all additions, alterations and improvements made to the Premises shall become the property of LL and be surrendered w/ the Premises upon the expiration of the Term; provided, TT's equipment, machinery and trade fixtures which can be removed w/out damage to the Premises shall remain the property of TT and may be removed, subject to the provisions of Section 13.b.	Original Lease
snda	Subordination	L, Pg. 15, Sec. 24 - Subordination: W/in 10 days of written request of LL, or any first mortgagee or first deed of trust beneficiary of LL, or ground LL of LL, TT shall, in writing, subordinate its rights under the Lease to the lien of any first mortgage or first deed of trust, or to the interest of any lease in which LL is lessee, and to all advances made or hereafter to be made thereunder. The form of such agreement shall be such customary form as may be required by LL's lender to ground LL. TT shall have the right to obtain from any lender or LL or LL requesting such subordination, an agreement in writing providing that, as long as TT is not in default hereunder, the Lease shall remain in effect for the full Term. The holder of any security interest may, upon written notice to TT, elect to have the Lease prior to its security interest regardless of the time of the granting or recording of such security interest. Attornment: In the event of any foreclosure sale, transfer in lieu of foreclosure or termination of the lease in which LL is lessee, TT shall attorn to the purchaser, transferee or LL as the case may be, and recognize that party as LL under the lease, provided such party acquires and accepts the Premises subject to the lease.	Original Lease
prohib	Prohibited Use	L, Pg. 6-7, Sec. 8 - TT shall not use or occupy the Premises or permit anything to be done in or about the Premises which will in any way conflict w/ or violate any law, statute, ordinance or governmental rule or regulation now in force or which may hereafter be enacted or promulgated, or any covenant, condition or restriction affecting the Bldg or Project or the certificate of occupancy issued for the Bldg or Project, and shall, upon notice from LL, immediately discontinue any use of the Premises which is declared by any governmental authority having jurisdiction to be a violation of law or the certificate of occupancy. TT shall not do or permit to be done anything which will invalidate or increase the cost of any fire, extended coverage or other INS policy covering the Bldg or Project and/or property located therein, and shall comply w/ all rules, orders, regulations, requirements and recommendations of the INS Services Office or any other organization performing a similar function. TT shall not do or permit anything to be done in or about the Premises which will in any way obstruct or interfere w/ the rights of other tenants or occupants of the Bldg or Project, or injure or	Original Lease

annoy them, or use or allow the Premises to be used for any improper, immoral, unlawful or objectionable purpose, nor shall TT cause, maintain or permit any nuisance in, on or about the Premises. TT shall not commit or suffer to be committed any waste in or upon the Premises.

TT shall not engage in or use the Premises or any part of the Property for any Drug-Related Activities and shall not permit any Controlled Substances Use in the Premises or on any part of the Property. TT consents to LL's conduct of commercially reasonable background checks and verification procedures, and shall have its Guarantor consents to such background checks and verification procedures, to verify that neither tenant nor any Guarantor is or has been engaged in Drug Related Activities, and TT, for itself and its Guarantor, agrees to execute any further documents required in order LL to conduct such background checks and verification procedures. TT shall not make any payments to LL from funds derived from Drug-Related Activities.

L, Pg. 18-20, Sec. 31 - Refer Sec. 31 for Hazardous Materials.

L, Exh E, Pg. 30, Sec. 1 - The sidewalks, entries, and driveways shall not be obstructed by TT or any TT's Parties or used by them for any purpose other than ingress and egress to and from the Premises. LL may remove any such obstruction or thing (unauthorized by LL) w/out notice or obligation to TT.

L, Exh E, Pg. 30, Sec. 2 - TT shall not place any movable objects, including antennas, outdoor furniture, etc., in the parking areas, landscaped area or other areas outside of the Premises, or on the roof of the bldg.

L, Exh E, Pg. 30, Sec. 3 - No person shall disturb the occupants of the Project or adjoining properties using any radio or musical instrument or by the making of loud improper noises, or by the transmission of vibrations that impact other tenants of the Project.

L, Exh E, Pg. 30, Sec. 5 - TT shall not use, keep or permit to be used or to be kept any foul or noxious gas or substance in the Premises, or permit or suffer the Premises to be occupied or used in a manner offensive or objectionable to LL or other occupants of the Bldg by reason of noise, odors and/or vibrations, or interfere in any way w/ other tenants or those having business therein. TTs shall maintain the Premises free from mice, bugs, and ants attracted by water, food, or storage materials.

L, Exh E, Pg. 30, Sec. 8 - No outside storage of pallets, boxes, cartons, drums or any other containers or materials used in shipping or transport of goods is allowed. TT shall place all refuse in proper receptacles, and shall keep sidewalks and driveways outside the Bldg and lobbies, corridors, stairwells, ducts or shafts of the Bldg free of all refuse.

L, Exh E, Pg. 30, Sec. 9 - No person shall go on the roof of the Bldg w/out LL's permission.

L, Exh E, Pg. 30, Sec. 11 - TT shall not do or permit anything to be done in the Premises or bring or keep anything therein which will in any way obstruct or interfere w/ the rights of other tenants, or do, or permit anything to be done, in the Premises which shall, in the judgment of LL or its manager, in any way injure or annoy such other tenants, or conflict w/ the regulations of the fire department or w/ any INS policy upon the Bldg or any part thereof or any contents therein or conflict w/ any of the Regulations of the public bldg or health authorities.

Refer Exh E for more details.

permit	Permitted Use	L, BLI, Pg. 1, Sec. Permitted Use; Pg. 6, Sec. 8(a) - TT shall use the Premises solely for the purpose General warehousing and distribution of non-hazardous, flooring goods and associated general office use and for no other purpose.	Original Lease
percent	Percentage Rent / Gross Sales Statement	Lease is silent.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
tt ins	Tenant Insurance	L, Exh D, Pg. 28-29, Sec. 1-3 - TT shall maintain INS as follow: a. Commercial General Liability INS, w/ (a) contractual liability including the indemnification provisions contained in this Lease, (b) a severability of interest endorsement, (c) limits of not less than \$2,000,000 Dollars combined single limit per occurrence and not less than \$2,000,000 Dollars in the aggregate for bodily injury, sickness or death, and property damage, and umbrella coverage of not less than \$4,000,000 Dollars. b. Property INS against "AII Risks" of physical loss covering replacement cost of all improvements. TT waives all rights of subrogation, and TT's property INS shall include a waiver of subrogation in favor of LL. c. Worker Compensation or similar INS in form and amounts required by law, and Employer's liability w/ not less than the following limits. Each Accident - \$500,000, Disease - Policy Limit - \$500,000, Disease Each Employee - \$500,000. d. Loss of Income, Business Interruption and Extra Expense INS ins such amounts as will reimburse TT for direct or indirect loss of earnings and incurred costs for a period of 12 months attributable to all perils commonly insured against by prudent tenants or attributable to the prevention of access to the Premise or the Bldg as a result of such perils; such INS to be maintained w/ TT's Property INS carrier. e. If TT makes any alterations, additions or improvements to the Premises, TT shall in addition, prior to commencing any work and throughout such construction, maintain Builder's AII Risk INS on a completed value form in an amount approved by LL and sufficient to cover the cost of all work. f. If TT uses vehicles to carry out its business on or about the Project, Motor Vehicles Liability INS w/ a combined single limit of not less than \$1,000,000 for bodily injury and property damage. g. In the event that TT's operations involve the use of Hazardous Materials, TT shall in addition provide Pollution Legal Liability INS in an amount not less than \$1,000,000. h. Any other form or forms of INS or increased amounts of INS as LL or any mortgagees of LL may reasonably require from time to time. Additional Insured: LL, and if any, LL's bldg manager or agent, mortgagee and ground LL shall be named as additional insureds. Rating: A.M. Best rating of A VIII or better. Refer Exh D, Sec. 2 for INS Required of TT's Contractor. L, Pg. 14, Sec. 22 - COI: A copy of each paid up policy (authenticated by the insurer) or certificate of the insurer evidencing the existence and amount of each INS policy required hereunder shall be delivered to LL before the date TT is first given the right of possession of the Premises, and thereafter w/in 30 days after any demand by LL therefor. Cancellation: 20 days written notice to LL and LL's lender. Blanket Policy: TT shall have the right to provide such INS coverage pursuant to blanket policies obtained by the TT, provided such blanket policies expressly afford coverage to the premises, LL, LL's mortgagee and TT in the amounts required by this Lease. L, Pg. 14, Sec. 23 - Waiver of Subrogation: Yes.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
utility	Utilities	L, Pg. 7, Sec. 9 - Payment: TT shall pay directly to the appropriate supplier for all gas, heat, air conditioning, light, power, telephone, cable, sprinkler charges, water, sewer, and other UTL and services used on or from the Premises and separately metered together w/ any taxes, penalties, surcharges or the like pertaining thereto, and all maintenance charges for such UTL, and shall furnish all electric light bulbs, ballasts and tubes. If any such services are not separately metered to TT, TT shall pay a reasonable proportion, as determined by LL, of all charges jointly serving other premises. In the event energy benchmarking or reporting is required by law, TT shall w/in 10 days of LL's request provide energy usage and such other information as is needed for compliance. TT shall provide its own janitorial services for the Premises, and shall be responsible for the HVAC serving the Premises. Upon prior written notice, except in case of emergency, LL reserves the right, w/out any liability to TT and w/out affecting TT's covenants and obligations hereunder (including, any obligation to pay Rent) to temporarily stop service of any systems serving the Premises, whenever and so long as may be necessary by reason of, or in the making of, repairs or changes. In no event shall such interruption of services, or any interruption of services due to any cause beyond LL's control, be deemed an eviction or disturbance of TT's sue and possession of the Premises.	Original Lease
mktg	Advertising/Marketing Fund	Lease is silent.	Original Lease
security	Security Deposit	L, BLI, Pg. 2, Sec. Security Deposit – Amount: \$7,619.00 L, Pg. 6, Sec. 7 - TT agrees to deposit w/ LL the Security Deposit upon execution of the Lease, as security for TT's faithful performance of its obligations under the Lease. Interest Bearing: No. Application: If TT fails to pay any Rent or other amount when due and payable under the lease, or fails to perform any of the terms hereof, LL may appropriate and apply or use all or any portion of the Security Deposit for Rent payments or any other amount then due and unpaid, for payment of any amount for which LL has become obligated as a result of TT's default or breach, and for any loss or damage sustained by LL as a result of TT's default or breach, including attorney's fees, and LL may so apply or use this deposit w/out prejudice to any other remedy LL may have by reason of TT's s default or breach. Restore: If LL so uses any of the Security Deposit, TT shall, w/in 10 days after written demand therefor, restore the Security Deposit to the full amount originally deposited; TT's failure to do so shall constitute an act of default hereunder and LL shall have the right to exercise any remedy provided for under the lease. Return: W/in 60 days after the Term (or any extension thereof) has expired or TT has vacated the Premises, whichever shall last occur, and provided TT is not then in default on any of its obligations hereunder, LL shall return the Security Deposit to TT reduced by such amounts as may be required by LL to remedy defaults on the part of TT in the payment of Rent, to repair damages to the Premises caused by TT and to clean the Premises or, if TT has assigned its interest under this Lease, to the last assignee of TT. If LL sells its interest in the Premises, LL may deliver this deposit to the purchaser of LL's interest and thereupon be relieved of any further liability or obligation w/ respect to the Security Deposit.	Original Lease
ti allow	TI Allowance	L, Exh C, Pg. 27 - The Premises shall be provided in AS-IS, where-is condition.	Original Lease
exclusiv	Tenant Exclusives	Lease is silent.	Original Lease
restrict	LL's Restriction	Lease is silent.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
llrepair	LL's Repair	L, Pg. 8, Sec. 11(a) - LL shall at LL's expense maintain the structural soundness of the structural beams of the roof, and of the foundations and exterior walls of the Bldg in good repair, reasonable wear and tear excepted. The term "exterior walls" as used herein shall not include windows, glass or plate glass, doors, special storefronts or office entries, or loading docks or doors. LL shall perform on behalf of TT and other TTs of the Project, as an item of Project Operating Costs, the maintenance and repair of the structural portions of the Bldg, and public and common areas of the Project, including the maintenance and repair of the Bldg's roof, Common Area pest extermination, the landscaped areas, parking areas, driveways, fire sprinkler systems, sanitary and storm sewer lines, UTL services, electric and telephone equipment servicing the Bldg(s), exterior lighting and anything which affects the operation and exterior appearance of the Project, as determined by LL in its sole discretion. Any damage caused by or repairs necessitated by any negligent or willful act TT or due to roof penetrations made in connection w/ TT's installation shall be repaired by LL at TT's expense. TT shall immediately give LL written notice of any defect or need for repairs after which LL shall have a reasonable opportunity to repair same. LL and LL's agent's liability w/ respect to any defects, repairs, or maintenance for which LL is responsible under any of the provisions of this Lease shall be limited to the cost of such repairs or maintenance.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
ttrep	TT's Repair	L, Pg. 8-9, Sec. 11(b) - TT shall at TT's expense maintain all parts of the Premises in a good, clean, secure and fully-operative condition and promptly make all necessary repairs and replacements, including all floors/slab, windows, glass, doors, walls and wall finishes, floor covering, ceilings, truck doors, dock bumpers, dock plates and levelers, plumbing work and fixtures, downspouts, electrical and lighting systems (bulbs and ballasts), HVAC equipment, and fire sprinklers. TT shall at TT's expense also perform regular removal of trash and debris from the Premises. TT, shall promptly replace any portion of the Premises or system or equipment in the Premises which cannot be fully repaired, regardless of whether the benefit of such replacement extends beyond the Lease Term. HVAC: TT shall enter into a regularly scheduled preventive maintenance/service contract w/ licensed maintenance contractor for servicing all hot water, heating, ventilation and air conditioning ("HVAC") systems and associated equipment w/in or serving the Premises, which HVAC maintenance/Service contract will include all services suggested by the equipment manufacturer w/in the operation/maintenance manual, which contract shall be in a form reasonably acceptable to LL. TT shall be responsible for providing appropriate climate control in the Premises, and shall in all events maintain heat in the Premises during the winter months at a temperature of at least 55° Fahrenheit. TT shall not block or cover any of the HVAC ducts in the Premises. TT shall immediately report to LL: (i) any evidence of a water leak or excessive moisture in the Premises; (ii) any evidence of mold or mildew in the Premises; and (iii) any failure or malfunction in the HVAC system serving the Premises. LL may elect to contract directly w/ the maintenance contractor for the HVAC system, and in such event, TT shall reimburse LL for the cost of such preventive maintenance/service contract and the repairs and replacements performed pursuant thereto as Additional Rent. TT shall enter into a regularly scheduled preventive maintenance/service contract w/ a licensed contractor for servicing the loading dock system(s), which Dock maintenance/service contract will include all services suggested by the equipment manufacturer w/in the operation/maintenance manual, which contract shall be in a form reasonably acceptable to LL. TT shall be responsible for all repairs and alterations in and to the Premises, Bldg and Project and the facilities and systems thereof, the need for which arises out of (i) TT's use or occupancy of the Premises, (ii) the installation, removal, use or operation of TT's Property in the Premises, (iii) the moving of TT's Property into or out of the Bldg, or (iv) the act, omission, misuse or negligence of TT, its agents, contractors, employees or invitees. If TT fails to maintain the Premises in good order, condition and repair as required by this Article, LL shall give TT notice to do such acts as are reasonably required to so maintain the Premises (except in the event of an emergency when no such notice shall be required). Refer Sec. 11(b) for more details. L, Exh F, Pg. 34 - All lighting must be in good working order w/ replacement of bulbs, ballasts, and lenses as needed. All truck doors and dock levelers must be serviced and in good operating order including overhead door springs rollers tracks and motorized door operator. Dented truck door panels, broken panels and cracked lumber must be replaced, door tension adjusted to ensure proper operation, and replacement doors painted to match the bldg standard. All structural steel columns in the warehouse and office must be inspected and, after receiving approval of LL, any damage repaired. All HVAC system components must be in good working order and well-maintained, including the replacement of any necessary parts. This includes filters, thermostats, warehouse heaters and exhaust fans. Upon move out, LL will inspect the condition of the HVAC system w/ a certified mechanical contractor. Refer Exh F for more Broom Clean Condition and Repair Requirements.	Original Lease

Other Lease Provisions / Clauses

Id	Name	Description	Amendment Type
misc	Miscellaneous	L, Pg. 21, Sec. 36(m) - Financial Statement: TT's Representations. In order to induce LL to enter into the Lease TT agrees that it shall promptly furnish LL, from time to time but no more than once annually except in the case of a pending refinancing or sale, and upon LL's written request, w/ financial statements warranted in writing by TT's Chief Financial Officer to be current and accurate, reflecting TT's current financial condition. TT represents and warrants that all financial statements, records and information furnished by TT to LL in connection w/ the Lease are true, correct and complete in all respects.	Original Lease
reloc	Relocation Option	L, Pg. 17-18, Sec. 30 - At any time after execution of the Lease, LL may substitute for the Premises Original Lease other premises in the Project (the "New Premises") upon not less than 30 days' prior written notice, in which event the New Premises shall be deemed to be the Premises for all purposes hereunder; provided, however, that (i) the New Premises shall be similar in area and in appropriateness for TT's purpose; and if TT is occupying the Premises at the time of such substitution, LL shall pay the expense of physically moving TT, TT's property and equipment to the New Premises and shall, at LL's sole cost, improve the New Premises w/ improvements substantially similar to those LL has committed to provide or has provided in the Premises. If the New Premises are smaller than the Premises as it existed before the relocation, Base Rent shall be reduced proportionately. At LL's request, TT will execute an amendment to the Lease memorializing the leasing of the New Premises and setting forth the correct data regarding the New Premises and the Rent payable therefor. In the event that TT does not vacate and surrender possession of the Premises to LL in the time, or cease its operations of business at the Premises, as the case may be, on the date and in the manner required, in addition to all other liabilities and damages to which TT shall be subject by reason thereof, TT agrees to indemnify LL from any Loss which may be imposed upon or incurred by or asserted against LL arising, directly or indirectly, out of or in connection w/ TT's failure to surrender possession of, or cease its operation of business at, the Premises. LL shall also have the right to specific performance w/ respect to TT's obligation to surrender possession of, or cease operation of its business at, the Premises. The election of LL to insist upon specific performance in such event shall not be construed as a waiver or relinquishment of any provision, covenant, agreement or condition on the part of TT to be performed or of any other remedy that LL may be entitled to under the Lease, at law or otherwise.	
roof	Roof Repairs	L, Pg. 8, Sec. 11(a) - LL shall at its expense maintain the structural soundness of the structural beams of the roof, foundations, and exterior walls of the bldg in good repair, reasonable wear and tear excepted. LL shall perform on behalf of TT and other tenants of the Project, as an item of Project Operating Costs, the maintenance and repair of the structural portions of the Bldg, and public and common areas of the Project, including the maintenance and repair of the Bldg's roof, as determined by LL in its sole discretion.	Original Lease

Contacts

Role	Company	Name	Address	Phone	Email
Billing	Oracle Flooring Direct LLC	Oracle Flooring Direct LLC	4944 Ursula Street,Denver,CO 80239		